

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB2182 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____
Amendment submitted by: Anthony Moore _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED POLICY
COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 2182

By: Howard of the Senate

and

Moore of the House

PROPOSED POLICY COMMITTEE SUBSTITUTE

An Act relating to civil remedies; creating the Uniform Civil Remedies for Unauthorized Disclosure of Intimate Images Act; defining terms; authorizing cause of action for the intentional disclosure or threatened disclosure of an intimate image without the depicted individual's consent; limiting use of prior consent; providing for a reasonable expectation of privacy under certain circumstances; defining terms; establishing the burden of proof for the disclosing party to not be found liable under this act; excluding from liability defendants who are parents, legal guardians, or individuals with legal custody of a child unless plaintiff meets certain burden of proof; prohibiting a finding of public concern or public interest solely based on the depicted individual being a public figure; excluding certain data providers from being liable unless the provider had actual knowledge the specific content constitutes an intimate image disclosed without consent and failed to remove or disable access to the content; authorizing the exclusion or redaction of identifying characteristics of the plaintiff in court proceedings; providing for recovery of damages by prevailing plaintiff; authorizing the court to award a prevailing plaintiff reasonable attorney fees and costs and other additional relief including injunctive relief; providing a statute of limitations of four years for actions brought under this act; applying tolling statutes; tolling actions for

1 depicted individuals who are minors on the date of
2 disclosure or threatened disclosure; construing
3 provisions; providing for codification; and providing
4 an effective date.

5 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

6 SECTION 1. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1121 of Title 12, unless there
8 is created a duplication in numbering, reads as follows:

9 This act shall be known and may be cited as the "Uniform Civil
10 Remedies for Unauthorized Disclosure of Intimate Images Act".

11 SECTION 2. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1122 of Title 12, unless there
13 is created a duplication in numbering, reads as follows:

14 As used in this act:

15 1. "Consent" means affirmative, conscious, and voluntary
16 authorization by an individual with legal capacity to give
17 authorization;

18 2. "Depicted individual" means an individual whose body is
19 shown in whole or in part in an intimate image;

20 3. "Disclose" or "disclosure" means transfer, publication, or
21 distribution to another person;

22 4. "Identifiable" means recognizable by a person other than the
23 depicted individual:

24 a. from an intimate image itself, or

b. from an intimate image and identifying characteristic displayed in connection with the intimate image;

5. "Identifying characteristic" means information that may be used to identify a depicted individual;

6. "Individual" means a human being;

7. "Intimate image" means a photograph, film, video recording, or other similar medium that shows:

a. the uncovered genitals, pubic area, anus, or female post-pubescent nipple of a depicted individual, or

b. a depicted individual engaging in or being subjected to sexual conduct;

8. "Person" means an individual, estate, business or nonprofit entity, public corporation, government or governmental subdivision, agency, or instrumentality, or other legal entity; and

9. "Sexual conduct" includes:

a. masturbation,

b. genital, anal, or oral sexual intercourse,

c. sexual penetration of, or with, an object,

d. bestiality, or

e. the transfer of semen onto a depicted individual.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1123 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1 1. "Harm" includes physical harm, economic harm, and emotional
2 distress whether or not accompanied by physical or economic harm;
3 and

4 2. "Private" means:

5 a. created or obtained under circumstances in which a
6 depicted individual had a reasonable expectation of
7 privacy, or

8 b. made accessible through theft, bribery, extortion,
9 fraud, false pretenses, voyeurism, or exceeding
10 authorized access to an account, message, file,
11 device, resource, or property.

12 B. Except as otherwise provided in Section 4 of this act, a
13 depicted individual who is identifiable and who suffers harm from a
14 person's intentional disclosure or threatened disclosure of an
15 intimate image that was private without the depicted individual's
16 consent shall have a cause of action against the person if the
17 person knew that the content was of the type prohibited.

18 C. Consent to creation of the image or previous consensual
19 disclosure of the image by a depicted individual shall not establish
20 by itself that the individual consented to the disclosure of the
21 intimate image that is the subject of an action under this act or
22 that the individual lacked a reasonable expectation of privacy.

23 D. A depicted individual who does not consent to the sexual
24 conduct or uncovering of the part of the body depicted in an

1 intimate image of the individual shall retain a reasonable
2 expectation of privacy even if the image was created when the
3 individual was in a public place.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1124 of Title 12, unless there
6 is created a duplication in numbering, reads as follows:

7 A. As used in this section:

8 1. "Child" means an unemancipated individual who is less than
9 eighteen (18) years of age; and

10 2. "Parent" means an individual recognized as a parent under
11 the laws of this state.

12 B. A person shall not be liable under this act if the person
13 proves that disclosure of, or a threat to disclose, an intimate
14 image was:

15 1. Made in good faith:

16 a. to law enforcement,

17 b. in a legal proceeding, or

18 c. during medical education or treatment;

19 2. Made in good faith in the reporting or investigation of:

20 a. unlawful conduct, or

21 b. unsolicited and unwelcome conduct;

22 3. Related to a matter of public concern or public interest; or

23 4. Reasonably intended to assist the depicted individual.

24

1 C. Subject to subsection D of this section, a defendant who is
2 a parent, legal guardian, or individual with legal custody of a
3 child shall not be liable under this act for a disclosure or
4 threatened disclosure of an intimate image of the child.

5 D. If a defendant asserts an exception to liability under
6 subsection C of this section, the exception shall not apply if the
7 plaintiff proves the disclosure was:

8 1. Prohibited by law; or

9 2. Made for the purpose of sexual arousal, sexual
10 gratification, humiliation, degradation, or monetary or commercial
11 gain.

12 E. Disclosure of, or a threat to disclose, an intimate image
13 shall not be a matter of public concern or public interest solely
14 because the depicted individual is a public figure.

15 F. A provider of cloud computing, data storage, web hosting, or
16 other infrastructure services shall not be liable under this act
17 solely by reason of providing such services to a person who
18 discloses or threatens to disclose an intimate image, provided that
19 the provider:

20 1. Does not have actual knowledge that the specific content
21 constitutes an intimate image disclosed without consent under this
22 act; or

23 2. Upon obtaining actual knowledge of such content, acts
24 expeditiously to remove or disable access to the content.

1 SECTION 5. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1125 of Title 12, unless there
3 is created a duplication in numbering, reads as follows:

4 In a cause of action filed pursuant to this act:

5 1. The court may exclude or redact from all pleadings and
6 documents filed in the action other identifying characteristics of
7 the plaintiff;

8 2. A plaintiff to whom paragraph 1 of this section applies
9 shall file with the court and serve on the defendant a confidential
10 information form that includes the excluded or redacted plaintiff's
11 name and other identifying characteristics; and

12 3. The court may make further orders as necessary to protect
13 the identity and privacy of a plaintiff.

14 SECTION 6. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1126 of Title 12, unless there
16 is created a duplication in numbering, reads as follows:

17 A. In a cause of action filed pursuant to this act, a
18 prevailing plaintiff may recover:

19 1. The greater of:

20 a. economic and noneconomic damages proximately caused by
21 the defendant's disclosure or threatened disclosure,
22 including damages for emotional distress whether or
23 not accompanied by other damages, or
24

1 b. statutory damages not to exceed Ten Thousand Dollars
2 (\$10,000.00) against each defendant found liable under
3 this act for all disclosures and threatened
4 disclosures by the defendant of which the plaintiff
5 knew or reasonably should have known when filing the
6 action or which became known during the pendency of
7 the action. In determining the amount of statutory
8 damages under this subparagraph, consideration shall
9 be given to the age of the parties at the time of the
10 disclosure or threatened disclosure, the number of
11 disclosures or threatened disclosures made by the
12 defendant, the breadth of distribution of the image by
13 the defendant, and other exacerbating or mitigating
14 factors;

15 2. An amount equal to any monetary gain made by the defendant
16 from disclosure of the intimate image; and

17 3. Punitive damages as allowed under law of this state other
18 than this act.

19 B. In a cause of action filed pursuant to this act, the court
20 may award a prevailing plaintiff:

21 1. Reasonable attorney fees and costs; and

22 2. Additional relief, including injunctive relief.

23 C. This act shall not affect any other right or remedy
24 available under the laws of this state.

1 SECTION 7. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1127 of Title 12, unless there
3 is created a duplication in numbering, reads as follows:

4 A. An action authorized by subsection B of Section 3 of this
5 act for:

6 1. An unauthorized disclosure may not be brought later than
7 four (4) years from the date the disclosure was discovered or should
8 have been discovered with the exercise of reasonable diligence; and

9 2. A threat to disclose may not be brought later than four (4)
10 years from the date of the threat to disclose was made.

11 B. Except as otherwise provided in subsection C of this
12 section, this section shall be subject to the tolling statutes of
13 this state.

14 C. In an action under subsection B of Section 3 of this act by
15 a depicted individual who was a minor on the date of the disclosure
16 or threat to disclose, the time specified in subsection A of this
17 section shall not begin to run until the depicted individual attains
18 the age of majority.

19 SECTION 8. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 1128 of Title 12, unless there
21 is created a duplication in numbering, reads as follows:

22 A. This act shall be construed to be consistent with the
23 Communications Decency Act of 1996, 47 U.S.C., Section 230.
24

1 B. This act may not be construed to alter the laws of this
2 state on sovereign immunity.

3 SECTION 9. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1129 of Title 12, unless there
5 is created a duplication in numbering, reads as follows:

6 In applying and construing this uniform act, consideration shall
7 be given to the need to promote uniformity of the law with respect
8 to its subject matter among states that enact it.

9 SECTION 10. This act shall become effective November 1, 2026.

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